

HOUSE No. 2668

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring confidentiality for emergency service providers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/16/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>2/10/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>6/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>6/12/2025</i>

HOUSE No. 2668

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 2668) of Paul McMurtry and Sally P. Kerans relative to crisis intervention services for emergency service provider. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring confidentiality for emergency service providers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 233 of the General Laws is hereby amended by striking section
2 20O and inserting the following section in its place:-

3 Section 20O: (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:-

5 "Certified emergency service provider", an emergency service provider certified by the
6 Massachusetts Peer Support Network or International Critical Incident Stress Foundation, Inc.

7 "Confidential Information", is information transmitted in confidence by and between an
8 emergency service provider and a certified emergency service provider or licensed mental health
9 professional during the course of a critical incident stress management session by a means which
10 does not disclose the information to a person other than a person or persons participating in the
11 critical incident stress management session with the emergency service provider. The term

includes all information received by the certified emergency service provider or licensed mental health professional during the critical incident stress management session.

"Crisis intervention", immediate short-term psychological care provided by a certified emergency service provider providing critical incident stress management to an emergency service provider after said emergency service provider's response to a critical incident.

"Crisis intervention services", consultation, counseling, debriefing, defusing, intervention services, prevention or referral.

"Critical incident", an event resulting in psychological stress or trauma to an emergency service provider as a result of said emergency service provider's response to the incident.

"Critical incident stress management", a program designed to assist an emergency service provider in coping with the psychological stress or trauma resulting from said emergency service providers response to a critical incident.

"Emergency service provider", an active or retired law enforcement officer, police officer, state police trooper, sheriff or deputy sheriffs, firefighter, or emergency medical personnel.

"Secretary", the secretary of the executive office of public safety and homeland security.

(b) Information provided by an emergency service provider to a certified emergency service provider or licensed mental health professional as part of crisis intervention services provided by the certified emergency service provider or licensed mental health professional to the emergency service provider either individually or as part of a group shall be confidential and shall not be disclosed to a third party, except as provided by subsection (e).

(c) An emergency service provider has a privilege to refuse to disclose, and to prevent others from disclosing, confidential communications made during a critical incident stress management session for the purpose of lessening the impact of an event, accelerating their own normal coping abilities, and helping to prevent the development of post-traumatic stress disorder, as follows:

(1) between the emergency service provider and the certified emergency service provider or licensed mental health professional

(2) between other emergency service providers participating in a group critical incident stress management session and the certified emergency service provider or licensed mental health professional.

(d) The privilege may be claimed by the emergency service provider, the emergency service provider's guardian or conservator, or the personal representative of a deceased emergency service provider as the case may be at the time the privilege is claimed.

(e) Subsection (b) shall not apply to information provided by an emergency service provider to a certified emergency service provider or licensed mental health professional as part of crisis intervention services provided by the certified emergency service provider or licensed mental health professional to the emergency service provider if:

(i) the certified emergency service provider or licensed mental health professional providing crisis intervention services has reasonable cause to believe that the emergency service provider receiving the crisis intervention services is in need of treatment in a hospital for mental or emotional illness or that there is a threat of imminently dangerous activity by the emergency

53 service provider receiving the crisis intervention services against himself or herself or another
54 person;

55 (ii) the certified emergency service provider or licensed mental health professional
56 providing crisis intervention services has reasonable cause to believe that the emergency service
57 provider receiving the crisis intervention services has engaged in conduct required to be reported
58 pursuant to section 51A of chapter 119;

59 (iii) the certified emergency service provider or licensed mental health professional
60 providing crisis intervention services has reasonable cause to believe that the emergency service
61 provider receiving the crisis intervention services has engaged in conduct in violation of any
62 federal or state law;

63 (iv) the certified emergency service provider or licensed mental health professional
64 providing crisis intervention services has reasonable cause to believe that the emergency service
65 provider receiving the crisis intervention services has admitted to criminal conduct;

66 (v) the certified emergency service provider or licensed mental health professional
67 providing crisis intervention services has reasonable cause to believe that the emergency service
68 provider receiving the crisis intervention services has admitted to conduct that constitutes a
69 violation of the laws that are normally enforced by the entity for which the emergency service
70 provider receiving the crisis intervention services is employed;

71 (vi) the certified emergency service provider or licensed mental health professional
72 providing crisis intervention services was an initial emergency service responder, a witness, or a
73 party to the critical incident that prompted an emergency service provider to engage in crises
74 intervention services; or

(vii) the emergency service provider receiving the crisis intervention services waives confidentiality and gives express consent for the certified emergency service provider or licensed mental health professional to testify or the emergency service provider receiving the crisis intervention services otherwise divulges information related to such services to any third party.

(f) An emergency service provider who provides crisis intervention services to emergency service providers pursuant to this section shall: (i) be certified by the Massachusetts Peer

Support Network or International Critical Incident Stress Foundation, Inc.; (ii) provide documentation of such certification to their employer; and (iii) annually provide their employer with proof of such certification.

An entity employing a certified emergency service provider shall maintain the documentation provided by the employee under this subsection of the employee's certification by the Massachusetts Peer Support Network or the International Critical Incident Stress Foundation, Inc. Such documentation shall be made available at the request of the secretary.

(g) If an entity employing a certified emergency service provider determines that an employee has violated this section, the entity shall promptly notify in writing the Massachusetts Peer Support Network and or the International Critical Incident Stress Foundation, Inc. of the violation. An employee that violates this section shall be considered decertified and shall not be eligible to provide crisis intervention services as a certified emergency service provider for a period of 5 years.